

BEFORE THE IOWA BOARD OF SOCIAL WORK

RE: Social Worker Masters Level License of MARY LIMAS License No. 06302 Respondent	CASE NO. 21-0009 COMBINED STATEMENT OF CHARGES, SETTLEMENT AGREEMENT, AND FINAL ORDER
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COME NOW the Iowa Board of Social Work ("Board") and Mary Limas ("Respondent"), PO Box 439, Roland IA 50236, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order ("Order") pursuant to Iowa Code sections 17A.10 and 272C.3(4), and 645 IAC 12. The Board has jurisdiction over Respondent and the subject matter of this case pursuant to Iowa Code chapters 17A, 147, 154C, and 272C, and 645 IAC 283.

A. STATEMENT OF CHARGES

COUNT I

1. Respondent is charged with engaging in sexual activities or sexual contact with a client in violation of 645 IAC 282.2(9)"a", and may be disciplined pursuant to Iowa Code section 147.55(8) and 645 IAC 283.2(12).

B. FACTUAL CIRCUMSTANCES

2. Respondent holds Iowa license number 006302 to practice social work at the masters level, which expired on December 31, 2020, but remains active due to emergency relief provisions that are in place.

3. On one occasion in December 2020, Respondent kissed a client.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

4. The Board has jurisdiction over the parties and the subject matter of this proceeding.

5. Respondent acknowledges that the allegations in the Statement of Charges, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.

6. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

7. Respondent acknowledges that she has the right to be represented by counsel on this matter.

8. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

9. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

10. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

11. This Order shall not be binding as to any new complaints received by the Board.

12. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

13. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

14. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

15. Respondent is **CITED** for engaging in sexual activities or sexual contact with a client and **WARNED** that future violations may result in further disciplinary action.

16. Respondent's license is placed on **PROBATION** for a minimum period of two (2) years, subject to the following conditions:

- a. Respondent shall complete two (2) years of monitored practice before being released from probation. Within thirty (30) days of this Order, Respondent shall submit the name and credentials of a proposed practice monitor and proposed practice monitoring plan for approval. The practice monitor must be an Iowa licensed independent level social worker with no disciplinary history and training in supervision. The practice monitor must not employ Respondent or be employed by the same employer as Respondent and must be able to objectively monitor Respondent's practice. Practice monitoring shall commence upon Board approval of the practice monitor and the practice monitoring plan. Respondent shall provide the practice monitor with a copy of this Order. Respondent shall meet in-person or via videoconference with the practice monitor on a monthly basis during the probationary period to review Respondent's compliance with this Order, Respondent's clinical practice, and any issues related to boundaries or ethics. As part of the review of Respondent's clinical practice, Respondent's practice monitor shall review records from a minimum of ten (10) percent of Respondent's clients seen in the previous month.

Respondent is responsible for ensuring the quarterly reports are timely submitted by her practice monitor.

- b. Within six (6) months, Respondent shall complete ten (10) hours of continuing education in the areas of professional boundaries and/or ethics. These continuing education hours are in addition to the hours required for license renewal and cannot be used to satisfy the continuing education requirement of any license renewal. Respondent shall provide copies of all certificates of completion to the Board as proof of successful completion of this requirement. Respondent is responsible for all costs associated with obtaining the required continuing education.
- c. During the probationary period, Respondent shall notify all employers and prospective employers for any position that requires licensure as a social worker (no later than at the time of an employment interview) of this Order.
- d. Respondent shall appear before the Board upon request for the purpose of reviewing her performance during the probationary period. Respondent shall be given reasonable notice of the date, time, and place for such appearances.
- e. Respondent is responsible for all costs incurred to comply with these terms and conditions.
- f. Respondent shall provide written notification to the Board of any change of home address, telephone number, or place of employment within ten (10) days of such a change.
- g. Respondent shall obey all laws and regulations governing the practice of social work.
- h. Respondent and Respondent's practice monitor shall each submit quarterly reports to the Board. Each year, the Quarter 1 (January-March) report is due no later than April 5th; the Quarter 2 (April-June) report is due no later than July 5th; the Quarter 3 (July-September) report is due no later than October 5th; and the Quarter 4 (October-December) report is due no later than January 5th.
- i. The notifications and reports required to be submitted to the Board pursuant to this paragraph should be mailed to the Iowa Board of Social Work, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319, or emailed to Tony.Alden@idph.iowa.gov.

17. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154C, and 272C and 645 IAC 13 and 283.

7/1/2021
Date

Mary Limas
MARY LIMAS
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Social Work on August 9, 2021.

/s/ Tony Raymer
Chairperson
Iowa Board of Social Work